

Before the
FEDERAL MARITIME COMMISSION

Docket No. 22-23

MARINE TRANSPORT LOGISTICS, INC. v. CMA CGM (AMERICA) LLC

JOINT STATUS REPORT AND PROPOSED SCHEDULE

Complainant Marine Transport Logistics, Inc. (MTL or Complainant) and Respondent CMA CGM, S.A. (CMA CGM or Respondent) submit this joint status report in accordance with the Presiding Officer's Order dated October 31, 2023 (Order).

On April 7, 2023, Respondent filed an appeal to the Commission of a ruling made by the Presiding Officer regarding discovery of information that the French Government asserts is located in France. On July 27, 2023, the Presiding Officer stayed the proceeding pending resolution of the appeal. The Commission denied the appeal on October 30, 2023 and the Presiding Officer issued the Order on October 31.

The remainder of this Joint Status Report sets out the Parties' proposed schedule for the resumed proceeding, designed to allow this proceeding to be resolved by the Presiding Officer as soon as reasonably possible. It is based in significant part on the schedule in effect before the appeal, but also considers the upcoming holidays and each Party's concern about discovery responses provided by the other Party.

November 30, 2023	Respondent serves its response and objections to Complainant's Document Request
December 7, 2023	Depositions may begin to be noticed
January 19, 2024	Depositions completed
January 26, 2024	Last day to serve written discovery requests
February 15, 2024	Parties serve responses to final written discovery requests
February 16, 2024	Discovery ends
March 15, 2024	Complainant files brief, proposed findings of fact, and appendix
April 12, 2024	Respondent files opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
April 24, 2024	Complainant files reply brief and responses to proposed findings of fact

DATED: November 15, 2023

Respectfully submitted,

s/ Garry Pogil

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